rier in or on a railway freight car at a carload rate;

(g) "Truckload shipment" means property which is transported by a motor carrier in or on a motor truck (1) at a truckload rate, or, (2) in a quantity the weight of which is 10,000 pounds or more;

(h) "Motor truck" means (1) a straight truck, (2) a combination truck-tractor and semi-trailer, (3) a full trailer, (4) or any combination thereof, or (5) any other rubber-tired vehicle propelled by mechanical power, when used in the transportation of property;

(i) "ODT shipping permit" means a permit issued by the Office of Defense Transportation, or for the Office of Defense Transportation by a duly authorized agent or agency;

(j) "Continental United States" means the forty-eight States and the District of Columbia.

§ 502.136 *Applicability.* The provisions of this order shall be applicable only within the continental United States.

§ 502.137 *Transportation of Government freight to or through the Dominion of Canada.* No person shall offer for transportation, and no carrier shall accept for transportation, or transport, any Government freight for shipment from any point within the continental United States to any destination within the Dominion of Canada, or from any point within the continental United States through the Dominion of Canada to any destination outside the continental United States, unless a valid and effective ODT shipping permit authorizing the transportation of such freight is outstanding, and the number of such permit has been endorsed or inscribed upon the face of the waybill, bill of lading, or other shipping documents, or unless such permit or a certified copy thereof accompanies such freight when offered for transportation and while in transit.

§ 502.138 *Application for and issuance of ODT shipping permits.* Application for an ODT shipping permit covering the transportation of Government freight subject to this order shall be made by the interested Government procuring agency in accordance with any administrative order issued as hereinafter provided. If the transportation of the freight covered by such an application will not result in or contribute to traffic congestion, an ODT shipping permit authorizing the transportation of such freight will be issued. Any such permit will be subject to suspension or cancellation when a change in shipping conditions requires such action, or if the permit was issued in error.

§ 502.139 *Issuance of special or general permits.* The provisions of this order shall be subject to any special permit issued by the Director, Division of Traffic Movement, Office of Defense Transportation, or to any general permit issued by the Office of Defense Transportation, to meet specific needs or exceptional circumstances or to prevent undue hardships.

§ 502.140 *Procedures; delegation of authority.* The Director, Division of Traffic Movement, Office of Defense Transportation, is hereby authorized and directed to issue such administrative orders as may be required to establish procedures to be followed with respect to applications for and the issuance of ODT shipping permits referred to in §§ 502.137 and 502.138 of this order. The Director, Division of Traffic Movement, may issue such permits through such officials or agencies of the United States as he shall designate in any such administrative order.

§ 502.141 *Federal Reports Act of 1942.* The recording and reporting requirements of this order have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942. Specific recording or reporting requirements subsequently prescribed will be subject to the approval of the Bureau of the Budget pursuant to the Federal Reports Act of 1942.

§ 502.142 *Communications.* Except as otherwise directed, communications concerning this order should be addressed to the Office of Defense Transportation, Washington, D. C., and should refer to "General Order ODT 38."

This General Order ODT 38 shall become effective May 20, 1943.

Issued at Washington, D. C., this 15th day of May 1943.

JOSEPH B. EASTMAN,
Director, Office of Defense Transportation.

MAY 15, 1943.

[F. R. Doc. 43-7747; Filed, May 15, 1943; 3:23 p. m.]

[Administrative Order ODT 2]

PART 503—ADMINISTRATION

PROCEDURES FOR APPLICATION AND ISSUANCE OF ODT SHIPPING PERMITS COVERING CERTAIN GOVERNMENT FREIGHT SHIPMENTS

Pursuant to § 502.140 of General Order ODT 38, issued on May 15, 1943 (this issue), *It is hereby ordered,* That:

Sec.
503.75 Application for ODT shipping permits.
503.76 Issuance of ODT shipping permits.
503.77 Suspension and cancellation of ODT shipping permits.

AUTHORITY: §§ 503.75 to 503.77, inclusive, issued under General Order ODT 38, this issue.

§ 503.75 *Application for ODT shipping permits.* Application for the issuance of an ODT shipping permit, authorizing the transportation of Government freight from any point within the continental United States to any destination within the Dominion of Canada, or from any point within the continental United States through the Dominion of Canada to any destination outside the continental United States, pursuant to the provisions of General Order ODT 38, should be made by the Government procuring agency to the Traffic Control Division, Office of the Chief of Transportation, Army Service Forces, War Department, Washington, D. C. Such application shall be made upon a form to be prescribed by the Office of Defense Transportation.

§ 503.76 *Issuance of ODT shipping permits.* Upon receipt of such an application, the Traffic Control Division shall transmit the application to the Transportation Control Committee for consideration. The Transportation Control Committee is hereby authorized to direct the Traffic Control Division to issue an ODT shipping permit covering the transportation of the Government freight covered by such application when the Transportation Control Committee finds that the transportation of such Government freight will not result in, or contribute to, traffic congestion.

§ 503.77 *Suspension and cancellation of ODT shipping permits.* The Office of Defense Transportation or the Transportation Control Committee may direct the Traffic Control Division to suspend or cancel any ODT shipping permit issued pursuant to the provisions of this Administrative Order ODT 2, when a change in shipping conditions warrants such action, or if the permit was issued in error.

This Administrative Order ODT 2 shall become effective on May 20, 1943.

Issued at Washington, D. C., this 15th day of May, 1943.

H. F. MCCARTHY,
Director Division of Traffic Movement, Office of Defense Transportation.

[F. R. Doc. 43-7748; Filed, May 15, 1943; 3:23 p. m.]

[Administrative Order ODT 3]

PART 503—ADMINISTRATION

AMERICAN RAILROAD COMPANY OF PORTO RICO

Pursuant to Executive Order No. 9341 (8 F.R. 6323) dated May 13, 1943; *It is hereby ordered,* That:

Sec.
503.85 Appointment of Federal Manager
503.86 Cooperation with other officials

AUTHORITY: § 503.85 to 503.86, inclusive, issued under E.O. 9341, 8 F.R. 6323.

§ 503.85 *Appointment of Federal Manager.* Effective this date, M. Garcia de Quevedo is hereby appointed Federal Manager of the Properties of the American Railroad Company of Porto Rico, with full authority, subject to my direction,

(a) To take immediate possession of all real and personal property, franchises, rights, facilities, funds and other assets, tangible and intangible, of the American Railroad Company of Porto Rico, and to operate or arrange for the operation of such railroad in such manner as may be necessary for the successful prosecution of the war, through or